

Caste ————— Legal Perspective

————— Social Perspective

Legal → in certain form it accounts Caste (eg. Reservation, abolition of untouchability, SC/ST Act).

But in certain form it do not account Caste. (it do not recognize Hierarchy of Caste.)

Social → recognize hierarchy of Caste even it is not legal.

operation of Caste at legal level has a certain position. SC/ST act law exists because there is a certain level of discrimination.

Certain Political Parties form alliances based on Caste

-) Shift from Caste structure to existence

↳ that is, today we do not single structure like we have Varna, rather we have substantial entity.

we are moving away from idea of division of labour and functionality. we are looking more on dispersion. Each group is present as discrete subset and are working towards making better for themselves.

↳ competition b/w Caste group is becoming important

Hierarchy has delegitimates in Caste system Publically & those who believe can only believe personally & in private.

→ We have idea of citizenship that every citizen is equal.

eg.) Same sex couples → it is decriminalized in India (legal) but this thing may be legal but not accepted socially.

Similarly for Caste, legally no Purity & Pollution but socially ~~is~~ practiced.

→ Law and society do not always run together.
∴ the dominant idea today is ~~not~~ equality and not purity and pollution.

④ Caste system continuity and change

→ static of dynamic system
Class is more dynamic as we can change the economic status while Caste is more static.

But there is some dynamism also in Caste (movement in Varma Hierarchy).

eg.) → restriction on Food may have weakened (People ^{have} move over the Varma system)

→ But restrictions on marriage / sexuality still strong.

In public discussion about castes increased after independence in terms of reservation, social movements, Political mobilisⁿ.

④ Book view vs Field View :-

Ritual Hierarchy / Economic Hierarchy

if we only look at the Varma system we do not ~~to~~ find the actual condition.

- Many dominant castes belong to Shudras.
 eg.) Vokkaligas (Peasants in Karnataka), is not at top level in Ritual Hierarchy.

The definition of dominant caste ^{acc. to} MN Srinivas means any caste having political and economic power, numerical dominance is not mandatory. eg.) Yadavs in UP are dominant but may not dominate in the Ritual Hierarchy.

- There are many caste groups b/w ^{→ Brahmin}
 but only some are dominant. ^{→ Kshatriya}
^{→ Vaishya}
^{→ Shudras}

In Rampura (Karnataka): -

- Ritual Hierarchy (Brahmins & Lingayats) is
 ↑ Upper most caste in Ritual Scheme

-) In secular (non ritual) hierarchy Vokkaligas are dominant and superior. (as ritual hierarchy is somewhat fixed in respect of the purity pollution idea)

* Apart from dominant caste, Srinivas gave other explanation about,

Sanskritization:- lower caste adopt social lifestyle, rituals of higher caste groups.

The different caste groups are not united across different regions in respect of the tradition and culture.

→ In lower Caste group, the women were included in work but upper caste women do not work outside. This was because of labour division, that in lower caste ~~people~~ ^{people} are involved in manual labour work & so women do work along with the men.

→ A mode of social mobility

- ↳ Patels are dominant in Gujarat (financially)
- ↳ Traditionally Rajputs were dominant but later on Patels (Patidars) rise up through economic power & replace over the Rajput culture and the idea of vegetarianism came in Gujarat.

Gujarat is considered developed because the people have developed their place. So the Patidars become the model of emulation.

- It's not just the emulation of Brahmins but emulation of those above.
- Untouchability constitutes a serious hurdle to caste mobility as even after ~~attain~~ acquiring power and education, the social stigma of untouchability is harder to come over.

(*) Hierarchy: one or many??

- Brahmin model is only one among others, possibly competing hierarchy.
- Historically we have Rajput, Jat, Maratha model of hierarchy. (Dominant caste may not be at top in Varma system)
- Varma system is one way to start with the idea of hierarchy.

as it
→ limits to one single, uniform, homogeneous look
view.

Field view gives different picture.

- Local models of hierarchy
- Each region is animated by its own logic
- not necessarily the same caste is dominant in other
region also.